

The Claremont City Council held a meeting on Wednesday, February 28, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Spencer Batchelder
Ward III Councilor Jonathan Hayden
Assistant Mayor Debora Matteau
At-Large Councilor Joel Tremblay
At-Large Councilor Wayne Hemingway
At-Large Councilor William Limoges
At-Large Councilor Nicholas Koloski
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to accept the minutes of the February 14, 2023, City Council meeting.

Councilor Koloski asked for a change on page twenty-six, and stated a report for the rabies officer was given at the time the question was asked and stated nothing was owed.

Voice vote:

Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes

Motion carried 9-0

MAYOR'S NOTES

Mayor Girard noted the ribbon cutting ceremony at 4pm this Friday at the CSBCC for the opening of the diving board.

CITY MANAGER'S REPORT

Manager Manale stated the Council had requested a bio for the new Finance Director. Manager Manale proceeded to give a brief bio on Nancy Bates, and plans on introducing her after arrival on the 18th.

Approval of Use from the land and water conservation fund for the Bike Shop and ARC's use of Arrowhead. A site visit was conducted and received confirmation from the National Parks Service that the agreements comply with their regulations. Several changes need to be made for signage and confirming public access for ADA bathrooms.

The City received a certificate and a congratulations on the Fitch-Brown-Patten House to be listed in the New Hampshire's State register of historic places.

Manager Manale noted after many citizen requests DeCamp will open the transfer Station for additional hours on Thursdays from 11 A.M. to 5:45 P.M. beginning March 21st. (not for trash or construction/demolition debris).

New Hampshire Fish and Game Department has secured funding for the Ashley Ferry boat landing ramp, the targeted date is early Summer, and expected to take two to three months to complete. The parking area and ramp will be closed to the public during this time.

CITIZEN'S FORUM

Mayor Girard asked all that will be participating in Citizens Forum to give their name and Ward number, and noted there is a clip-board in the back of the room to fill out.

Jim Cowen, Ward 1, stated he had just moved to Claremont from Baltimore and had concerns over drug deals. Mr. Cowen stated he was aware the entire state has a problem, but wants to know what Council is doing about drugs in this town.

Justin Laffin, Ward 1, shared concern over the silt at the boat landing.

Tom Luther, Ward 1, introduced himself as he applied for the Upper Valley and Historic District Commission.

Mayor Girard closed the citizen's forum.

OLD BUSINESS

Ordinance 620 CDA Amendments to City Code

Director Merrill, stated these are recommended zoning changes that relate to a number of members, appointments, and rules and regulations. Director Merrill noted this represents what the Manager and Council were interested in.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-FOUR

ORDINANCE #620

CLAREMONT CITY CODE AMENDMENTS

The City of Claremont Ordains:

A. Article 2, Division 5, of the Claremont City Code is hereby amended by changing the title to the section and adding or amending the following sections:

1. The title to Division 5 is amended and restated as:

Division 5. CLAREMONT DEVELOPMENT AUTHORITY

2. The Claremont City Code, Article 2, Division 5, is hereby amended by adding a new section, to be numbered 2-86 , which section reads as follows:

Sec. 2-86. – Establishment.

The Claremont Development Authority is established under the provisions of RSA 162-G, for the purposes described in RSA 162-G:2, and is granted all powers, duties, and responsibilities described in RSA 162-G, including RSA 162-G:15-a, except those powers and duties expressly reserved to the City Council under RSA 162-G:8.

3. The Claremont City Code, Article 2, Division 5, Sections 2-86 – 2-89, are renumbered as sections 2-87 - 91 and amended and restated as follows:

Section 2-87. Governing Board.

The Claremont Development Authority shall be governed by a board of directors having nine (9) members, all of whom shall reside within the boundaries of the city. Members shall be appointed by the City Council. The term of each member shall be three (3) years, except that initial terms of

members shall be staggered so that three members are appointed each year. Each member shall serve without compensation. Five (5) directors present shall constitute a quorum of the board of directors to transact any business. No action of the board of directors shall be effective unless it is passed by two-thirds of the directors present and voting. The City Manager shall serve as an ex officio nonvoting member of the board of directors.

Sec. 2-88. - Removal.

Any director of the Claremont Development Authority may be removed by the City Council for good cause.

Sec. 2-89. – Officers; Committees.

The board of directors of the Claremont Development Authority shall elect from its members a chairman, vice-chairman, and secretary.

Sec. 2-90. - Rules and regulations.

The board of directors shall establish rules and regulations for the conduct of the business of the Claremont Development Authority, subject to the approval of the City Council.

Sec 2-91. – Borrowing.

The Claremont Development Authority shall have the ability to issue bonds or obtain loans to pay project costs, as authorized by the City Council; any such bonds or loans shall not be considered obligations of the City or commit the City to make expenditures in excess of any appropriations made by the City Council expressly for meeting the obligations incurred by the bonds or loans.

B. Article III, Division 8, Sections 2-265, of the Claremont City Code, is amended and restated as: Sec. 2-265. - Other responsibilities.

The department of planning and development and its director are also responsible for the following areas:

- (1) *Historic district commission*: Its meetings, functions and concerns.
- (2) *Claremont development authority (CDA)*: Its meetings, functions and concerns. The CDA shall reimburse the City for time spent by City employees on CDA activities.
- (3) *Community development efforts* of the city, including the administration of grants.

C. Effective Date.

This ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to adopt Ordinance 620.

Assistant Mayor Matteau read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to unsuspend the CDA effective immediately.

Roll call:
Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

Ordinance 622 Cottage Developments

Director Merrill explained the Ordinance for zoning amendments of cottage developments.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #622

ZONING ORDINANCE AMENDMENTS

COTTAGE DEVELOPMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Definitions.

Amend Section 22-1, Definitions, to add the new definitions for "Cottage" and "Cottage Development" as follows:

Cottage shall mean a detached owner-occupied one-family dwelling unit with a maximum gross living area of one thousand square feet (1,000 sq. ft.) and a maximum footprint of one thousand square feet (1,000 sq. ft.). Porches are to be included in the calculation of maximum footprint. Spaces with a ceiling height of six feet or less measured to the exterior walls, such as in a second-floor area under the slope of the roof, shall be excluded when calculating the total floor area of a cottage. Cottages may also be attached horizontally in blocks of no more than three (3) units.

Cottage Development shall mean a development on a single lot having shared open space intended to serve cottages that interact together as a small community.

Section 2. Conditional Use Permits.

Amend Section 22-147 to permit "Cottage Developments" in the Agricultural Residential District (AR) subject to receiving a Conditional Use Permit, to read as follows:

Sec 22-147. Conditional use permits.

The following uses may be permitted in the agricultural residential district by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513.
3. *Cottage Developments, subject to the regulations contained in section 22.514.*

Amend Section 22-167 to permit "Cottage Developments" in the Rural Residential District (RR), subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-167. Conditional Use Permits.

The following uses may be permitted in the rural residential district by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513. (12/14/2022)
3. *Cottage Developments, subject to the regulations contained in Section 22-514.*

Amend Section 22-187 to permit "Cottage Developments" in the Rural Residential District II (RR-2) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-187. Conditional Use Permits.

The following uses may be permitted in the rural residential district II by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513.
3. *Cottage Developments, subject to the regulations contained in section 22.514.*

Amend Section 22-207 to permit "Cottage Developments" in the Residential District I (R-1) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-207. Conditional Use Permits.

The following uses may be permitted in the residential district I by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit. (12/14/2022)
 - c. The total number of dwelling units does not exceed a maximum of eight (8).
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.
- (3) *Cottage developments, subject to the regulations in section 22-514.*

Amend Section 22-227 to permit "Cottage Developments" in the Residential District II (R-II) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-227. Conditional Use Permits.

The following uses may be permitted in the residential district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.

- b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed a maximum of eight (8).
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.
- (3) *Cottage developments, subject to the regulations in section 22-514.*

Amend Section 22-298 to permit "Cottage Developments" in the Business District II (B-II) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-298. Conditional Use Permits.

The following uses may be permitted in the business district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
- a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and another five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed a maximum of eight (8).
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.
- (3) *Cottage developments, subject to the regulations in section 22-514.*

Add a new Section to Division 11, Multiple Use Healthcare District (MHU) to provide for Conditional Use Permits to read as follows:

Sec. 22-378. Conditional Use Permits

The following uses may be permitted in the multiple use healthcare district by the planning board, subject to the regulations contained in section 22-100 et. Seq., as well as any other application regulations of this chapter or regulations of the state and the following conditions and safeguards.

(1) *Cottage developments, subject to the regulations in section 22-514.*

Section 3. Division 11 Multiple Use Healthcare District (MHU).

Renumber the Division 11 section numbers subsequent to the addition of Sec. 22-378, to read as follows:

Sec. 22-379. Special Exceptions.

Sec. 22-380. Density.

Sec. 22-381. Parking.

Sec. 22-382. General Regulations.

Secs. 22-383 – 22-385. Reserved.

Section 4. Division 12. City Center Zoning Districts

Amend Sec. 22-387, Table of Uses, to add Cottage Developments into the table as a Residential use to appear as follows:

	City Center Residential I District	City Center Residential II District	Professional Residential District	Mixed Use District	City Center Business II District	Additional Regulations Reference (refer to these sections for additional regulations)
Residential	CR-1	CR-2	PR	MU	CB-2	
Single-family dwelling	P	P	P	CU	P	Sec. 22-387.1
Duplex		CU	CU	CU	CU	Sec. 22-387.1
Multifamily dwelling		P	P	CU	P	Sec. 22-387.1
Conversion of existing single-family to duplex	CU	CU	CU	CU	CU	Sec. 22-387.2
Conversion of existing single-family or duplex to multifamily dwelling	CU	CU	CU	CU	CU	Sec. 22-387.2
Accessory dwelling units	CU	CU	CU	CU	CU	Sec. 22-513
Accessory uses and buildings	P	P	P	P	P	
Manufactured housing on individual lots	P	P				Sec. 22-387.4
Planned residential development		SE				Sec. 22-387.5

<i>Cottage developments</i>	<i>CU</i>	<i>CU</i>	<i>CU</i>	<i>CU</i>	<i>CU</i>	<i>Sec. 22-514</i>
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Section 22-514. Cottage Developments

Add a new Sec.22-514, Cottage Developments, to Division I of Article V, Supplementary District Regulations, and renumber the remaining sections of the Division as follows:

Sec. 22-514 Cottage Developments

514.1 Purpose. The purpose of this section is to provide opportunities for single family housing that is small, energy-efficient, and affordable; to allow flexibility in site and design standards while promoting projects that ensure compatibility with surrounding land uses and existing neighborhoods; and to promote sustainability and neighborhood interaction through integrated design.

Cottage developments are intended to serve as part of the City's overall housing strategy to encourage affordability, innovation and variety in housing design and site development while ensuring compatibility with existing neighborhoods, and to promote a variety of housing choices to meet the needs of a population diverse in age, income, household composition and individual needs.

514.2 Applicable Use Districts. Cottage developments are allowed by conditional use in all zoning districts except the I1, I2 or I3 districts, in accordance with Sections 22-100 and 22-101 of this chapter and the requirements of this section.

514.3 Number and Arrangement of Units. Cottage developments shall contain a minimum of three (3) and a maximum of sixteen (16) cottages, located in one or more clusters to maximize efficiency of land use and to encourage a sense of community among the residents. Each cluster shall include a minimum of three (3) units.

514.4 Lot Size. All cottage developments shall have a minimum lot area of one-half acre, except in the AR, RR, RR2, R1 and R2 Districts, where a minimum lot area of 40,000 sq. ft. is required.

514.5 Density and Building Coverage.

(a) Permitted density shall be based on 2,500 sq. ft. of lot area per each cottage.

(b) The maximum permitted building coverage shall be 60% per cottage lot. This allows for a 1,000 SF home (maximum allowed footprint for a cottage per the definition of a cottage) with 1,500 SF of open space left per cottage lot. 400 SF of that 1,500 SF must be dedicated to common open space (see 514.6D)

514.6 Design Standards. The following design standards are intended to define design parameters to create a small community of cottages oriented around open space and to achieve compatibility with adjacent uses.

A. Individual Cottage Spaces. For each detached cottage, the site plan approved by the Planning Board shall delineate a building site for each detached cottage of no more than 1,000 sq. ft. (Refer to definition of cottage)

B. Detached Cottages. At least 50% of the cottages in the development shall be detached units.

C. Setbacks.

1. Interior Setbacks: The minimum setback between units within a cottage development shall be 10 feet, measured from the nearest point of the exterior walls.
2. Exterior Setbacks: Setbacks to property lines shall be in accordance with the underlying zoning district requirements.

D. Common Open Space. A minimum of 400 square feet of common open space shall be provided per cottage and per cluster. The common open space area for each cluster shall be contiguous and shall abut all of the cottages in the cluster. Cottages shall be oriented around and have their main entry from the common open space.

E. Roofs and Porches.

1. The highest point of the roof of the cottage shall not exceed 24 feet.
2. Cottages shall have an unenclosed, covered front primary entry and porch of at least 60 square feet in size. The front porch shall be oriented toward a common open space. The intent of this porch requirement is to create outdoor space in each cottage that is visually and physically connected to the common open space and to other cottages. The footprint of the porch shall be included when calculating the total floor area of a cottage.

F. Parking Location and Screening Requirements. The cottage development shall provide a minimum number of off-street parking spaces equal to one (1) parking space per cottage and a maximum number of off-street parking spaces equal to one and a half (1.5) spaces per cottage. In addition:

1. Parking areas shall be screened from public streets and adjacent residential uses by landscaping or architectural screening.
2. Parking areas shall be prohibited in the minimum required front yard.
3. Parking areas shall be separated from the common open space by landscaping or an architectural screen.

G. Existing Dwellings. An existing detached or attached one-family dwelling that is incorporated into a cottage development and is nonconforming with respect to the standards of this section shall be permitted to remain on a site used for a cottage development and shall be considered a cottage for purposes of this section. However, the extent of the noncompliance may not be increased, unless the proposed change is determined by the Planning Board to be consistent in character, scale and design with the cottage housing development.

H. Street Facing Facades. All cottages within 50 feet of a public street shall have street facing facades that avoid blank walls in order to avoid the appearance of “turning their backs” to the street. For all such cottages, a minimum of 25 percent of the street facing façade shall be comprised of windows and/or glass doors.

514.7 Cottage developments may be permitted subject to satisfactory solution regarding:

- (a) the ownership, use, and maintenance of common open space land to be held in common;
- (b) water supply; and
- (c) wastewater disposal.

Such solution may be a homeowner's association or similar legal mechanism.

514.8 Illustrations of Cottage Development Designs.





Secs. 22-515—22-526. Reserved.

Section 6. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 7. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 8. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to adopt Ordinance 622.

Assistant Mayor Matteau read the explanation of proposed action into the record.

Councilor Hemingway raised concern and wants planning and zoning to really take into consideration the rules of these developments.

Director Merrill stated all site plans must be reviewed by zoning.

Councilor Limoges would like these developments to start within City limits.

Assistant Mayor Matteau stated there is discussion on needs of housing, the vetting at the planning board level will address any concerns, and stated all plans will be reviewed carefully

Mayor Girard shared concern for septic, Director Merrill assured that planning would be required to look into that.

Councilor Hayden stated this has the potential of being amazing, but needs to be taken in caution, and wants to see owners living in these developments not just flipped and rented.

Mayor Girard opened a public hearing.

Norm Blouin, Ward 3, stated this was the craziest thing the City has done. Mr. Blouin stated this should be on City service only, and shared concern for well contamination.

Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - no

Matteau – yes

Batchelder – yes

Hemingway – no

Hayden – yes

O’Hearne – no

Girard – yes

Motion carried 6-3

NEW BUSINESS

Resolution 2024-26 North and Main

Director Merrill, stated the City re-bid the North and Main Project in December, the bid documents were the same. The one change made was the amount of work to be preformed by the contractor from 50% to 30%.

Bids were reviewed by the state, the actual construction cost was lower than the last time. Director Merrill noted construction engineering was omitted.

State DOT changed its rule and requires a 3rd party construction engineer and missed it when doing the numbers last time.

Director Merrill added the White-Water Conservation Easement and noted it wasn't part of the original project. The State Wet Land Permit determined because we were going to be impacting wetlands on North and Main Street there was a fee to pay of \$330,000.00. Director Merrill noted the City asked for a mitigation project instead.

Councilor Koloski shared concern about getting hit with multiple change orders, and using Fund Balance. Councilor Koloski noted the Fund Balance should be for emergency only.

Councilor Hemingway asked for clarification about the state funding and the City's match.

Director Merrill noted the original plan did not have a water line; the water line is not covered in the 80/20 match but the cost will be covered by the water fund.

Councilor Hayden would like to know more about the water line and asked how many businesses and homes does it serve and if it is a lead line.

Councilor Tremblay asked to see the full site plan.

Councilor Koloski wants to make sure the Council receives a water line presentation, scope of that work, alternative funding options when North and Main gets brought back.

Mayor Girard stated the Council is going to move on with the agenda, North and Main will be brought back at another meeting.

Mayor Girard opened up a public hearing

Keith Raymond, Ward 1, cautioned the Council on dragging feet for the North and Main Project, and noted It's time to move forward.

Memorandum

To: City Manager; Mayor & City Council
From: Nancy Merrill
Date: 2/20/24
Re: North & Main Street Project (NHDOT #13248)

In 2011, a Municipal Agreement between the NH Department of Transportation (NHDOT) and the City of Claremont was signed outlining the City's obligation for this project. The total estimated cost of the project was \$4,810,000 with NHDOT paying for 80% (\$3,848,000) of the cost of the project and the City responsible for the remaining 20% (\$962,000). At that time, the City allocated \$785,000 via bonds, and \$100,000 from the 2011 municipal budget, which was \$77,000 short of its obligation under the NHDOT Agreement.

As preliminary and final engineering and right of way activities continued, estimates for the project continued to increase. The City Council authorized additional funds for the 20% match by Resolution 2021-14 for \$88,416.75 (2021-14), which covered the initial gap plus increased costs, Resolution 2023-24 for \$26,584.25 (2023-24), and Resolution 2022-18 for \$19,200 as estimates increased again to keep pace with the 20% match.

A new water line was added to the project in 2020, which is non-participating as to the federal highway grant funding and will be paid for separately through the water enterprise fund. The total price for the waterline is \$2,128,260, none of the funds that are being requested are towards this portion of the work.

The Invitation to Bid was Advertised on December 4, 2023. It was advertised in the Valley News on December 13, 2023 and December 16, 2023. It was also advertised in the Union Leader on December 10, 2023 and December 13, 2023. New Hampshire Municipal Association also advertised it on their website. Five (5) bids were received for this project;

1. B.U.R. Construction: \$8,706,450.00
2. S.U.R. West Construction: \$9,053,272.50
3. Michels Construction: \$9,221,857.50
4. Bazin Brothers Trucking, Inc.: \$9,721,230.00
5. United Construction Corp: \$10,250,919.50

New Bids were opened on February 2, 2024 and have been reviewed by the engineering firm VHB. They have determined there were no irregularities or math errors found during bid analysis and have recommended awarding the contract to the low bidder, B.U.R. Construction. The participating costs for roadway, bridge and retaining walls came in at \$6,578,190. In order to sign the contract and proceed with construction, an additional request for \$473,936 towards the local match is requested from the City Council this request includes the local match for Bid cost (\$315,637), Construction Engineer cost with McFarland Johnson (\$144,448), VHB (\$12,482), and VHB rebid cost (\$1,369).

We request offsetting revenue for this funding request to come from the Municipal Transportation Capital Reserve Fund in the amount of \$100,000, the Reconstruction or Acquisition of City Owned Facilities Fund in the amount of \$50,000, Non-Capital Reserve General (City Owned Land) \$50,000 and Fund Balance in the amount of \$273,936 (to have no impact on the tax rate).

RESOLUTION 2024-26

Supplemental Appropriation for Infrastructure Improvements – North &

Main

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire (the "City") received Federal Highway Improvement Grant funds in 2011 for the reconstruction of the North and Main Street intersection anticipated to cost \$4,810,000 (the "Grant"); and

WHEREAS acceptance of this Grant required that the City provide local matching funds in the amount of \$785,000 for the North and Main reconstruction project (the "Project") which was done as part of the 2011 bond as well as \$100,000 appropriated in the 2011 Budget;

WHEREAS increased costs required the City to provide additional local matching funds in the amount of \$88,416.75 from Resolution 2021-14, \$19,200 from Resolution 2022-18, and \$26,584.25 from Resolution 2023-24; and

WHEREAS the project has been bid with expenditures exceeding the engineer's project estimates;

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of \$473,936 as the City's match for the Project, said sum shall be in addition to the funds already appropriated, spent and/or encumbered previously, with offsetting revenue to come from the Municipal Transportation Capital Reserve Fund in the amount of \$100,000, the Reconstruction or Acquisition of City Owned Facilities Fund in the amount of \$50,000, Non-Capital Reserve

General (City Owned Land) \$50,000 and Fund Balance in the amount of \$273,936 (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or their designees, to withdraw said funds;

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 Vote Required)*

2025-2030 CIP

Director Merrill explained the CIP comes from the planning board charged by State statute to come up with the CIP. Every year directors look forward five years and provide information to a steering committee and then reviews every one of these items, everything is scored and then goes back to Planning. A final plan is produced and then it comes to Council for approval. Director Merrill noted the understanding there won't be funding for all of these items, and did note the completed projects.

Councilor Koloski stated he would not accept this CIP as of tonight as the Council had asked for The Police Department items be added, and wants communication added.

Councilor Limoges asked about the boiler that needs to be replaced, Director Merrill responded that a bid was put out, but there was no response so a bid will be placed again.

Manager Manale spoke with City Planner Bearse at the planning board and wanted Information Technology and the Police Department included in the CIP. However, the goal was to get through this CIP while simultaneously working on IT and PD, and the thought was to come back with an amendment by memo.

Councilor Hayden asked about the timeline.

Manager Manale responded it would take a few months, that is why the Council is reviewing this portion now.

Assistant Mayor Matteau stated North and Main should be put back on the CIP if amended.

Councilor Koloski wants all items included in the CIP before deciding tonight.

Councilor Hemingway agrees with Councilor Koloski, and stated it should be brought back in full capacity.

By consensus, the Claremont City Council agrees bring back 2025-2030 CIP.

January 22, 2024

Honorable Mayor Dale Girard
and Members of the Claremont City Council
City of Claremont
58 Opera House Square
Claremont, NH 03743

Re: FY 2025-2030 Capital Improvements Program

Dear Mayor Girard and City Council Members:

The Planning Board, with the assistance of the Planning and Development Department, has completed the FY 2025-2030 Capital Improvements Program (CIP).

Work on this CIP began with the creation of the CIP Subcommittee and the solicitation of projects from each of the City's department directors. Projects were submitted by the Planning and Development, Fire, Parks and Recreation, and Public Works departments as well as projects for the library and city hall. The subcommittee met with each director to review their projects and to assign a rating of each project using all but criterion #5 of the "*Guidance for Capital Improvement Program Criteria*", a copy of which is included with this packet.

Upon completion of the subcommittee's review, the draft CIP was referred to the Planning Board. The Board reviewed each project relative to criterion #5. A summary of the ratings for every project is shown in the CIP Summary Matrix. The total rating score is transferred to the CIP spreadsheet in the column entitled "Evaluation Results". This scoring process enables the Planning Board to maintain an unbiased assessment of the capital projects with the perspective of community-wide priorities, as well as the reality of the City's short-term and long-term obligations.

On behalf of the Planning Board, I thank you for your consideration of the CIP as a bridge between the City's long-range planning, through the Master Plan, and the fiscal realities of the City Budget. It is intended as a guidance document, not a financial plan. The Planning Board welcomes feedback on this evaluation process.

The Planning Board also notes the following 11 capital projects from the FY2024-2029 CIP that have been funded and thus able to move on toward completion:

Department	Project	2024 Est. Cost
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Council Meeting
February 28, 2024
Page 87

Fire	Controlled Traffic Signal Intersection(s) Upgrade	(\$472,600)
	Restroom/Bathroom Rehabilitation	(\$75,000)
City Hall	City Hall/Opera House Storm Windows	(\$260,000)
Planning & Development Dept	Building Repair Visitors Center – Front Door and Entry Area	(\$55,000)
	Roof Replacement	(\$55,000)
Library	Replace Downstairs Flooring	(\$6,000)
	Slate Roof Repair	(\$4,000)
	Repoint Library Front Steps	(\$6,000)
Parks & Recreation	Dog Park	(\$64,000)
	Moody Park Tennis Court Conversion	(\$5,000)
Public Works – Water Dept	North & Main water improvements	(\$2,590,000)
	Whitewater Pipe Cleanup of sediment and weeds	(\$45,000)
	Smart Hydrants	(\$150,000)
Public Works – Streets & Roads	Girard Ave Culvert	(\$100,000)
	Exhaust System for Shop	(\$150,000)
Public Works – Sewer Dept	WWTP Screw Press	(\$4,425,000)

Sincerely,



Richard Wahrlich, Chair
Claremont Planning Board

cc: Yoshi Manale, City Manager
Jim Chamberlain, Chief, Fire Department (via e-mail)
Nick Lawrence, Director, Parks and Recreation Department (via e-mail)
Michael Grace, Director, Fiske Free Library (via e-mail)
Nancy Merrill, Director, Planning and Development Department (via e-mail)
Alex Gleeson, Director, Department of Public Works (via e-mail)
Diane Mulholland, Director, Finance Department (via e-mail)

Authorize Invest NH Funding

Memorandum

To: City Manager, Mayor & City Council
From: Nancy Merrill
Date: 2/20/28
Re: InvestNH

In 2022 the state created InvestNH to provide funding for a number of housing related programs. The program purpose was to accelerate additional units of affordable housing. The municipal demolition grant is part of this program and was created to support communities demolishing uninhabitable dwellings. The current funding has been fully used, but additional funding for the demolition program is expected soon and it is recommended that applications be submitted now.

The City currently owns through tax deed three mobile homes at 8, 10 and 22 Upham Place that are no longer suitable for housing. We seek authorization to apply to the InvestNH Demolition program for funding to remove and demolish these units to allow for newer code compliant housing at those addresses.

Motion to Authorize Invest NH Funding

The Claremont City Council hereby authorizes the City Manager or his designees to apply for municipal funds through the Invest NH housing program.

A motion was made by Councilor Koloski and seconded by Councilor Heminway to apply for municipal funds through the Invest NH housing program.

Roll call:

Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

Resolution 2024-27 Continuity of Operations Plan

Chief Chamberlain reminded the Council he presented the EOP last year. This year the COOP plan is essentially what happens if our infrastructure is impacted by incident. Chief Chamberlain worked with June Garneau from MAPS (Mapping and Planning Solutions).

June Garneau joined the Council Meeting via Zoom and noted the COOP is a plan if anything happens to the City facilities. It is a base plan of sixty-seven pages, and the rest are annexes for each department.

Ms. Garneau stated it has been a pleasure working with the City of Claremont, and noted Chief Chamberlain did a great job keeping everyone motivated and on track.

Ms. Garneau stated the next step is to have the document signed by the City Council, and then have the plan printed and sent off to the City. Then the Reimbursement procedure, the City will get reimbursement for all of the funding it paid MAPS.

Councilor Koloski asked about a hard copy for citizens.

Chief Chamberlain noted there will be several copies, some will have redacted pages for review and website.

RESOLUTION 2024-27

Claremont Continuity of Operations Plan

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS The City of Claremont received funding in the amount \$11,000.00 from New Hampshire Homeland Security and Emergency Management under an Emergency Management Performance Grant (EMPG) to assist in the preparation of the Claremont Continuity of Operations; and

WHEREAS several planning meetings were held between July 20, 2023, and January 4, 2024, regarding the development of the Claremont Continuity of Operations Plan; and

WHEREAS the City would like to accept these funds in the amount of \$11,000.

WHEREAS all monetary matches have been met, resulting in zero impact on the tax rate,

NOW THEREFORE, BE IT RESOLVED the City Manager of the City of Claremont is charged by municipal charter with the preservation of health, safety, and welfare of persons and property and shall see to the enforcement of ordinances of the City, the City Charter, and the laws of the State of New Hampshire; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 Vote Required)

Dated this 28th day of February 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor O’Hearne and seconded by Councilor Limoges to accept Resolution 2024-27.

Councilor O’Hearne read Resolution 2024-27 into the record.

Mayor Girard opened a public hearing, no one spoke, Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

Resolution 2024-28 Acceptance of Donation from the Wheel House

Chief Wilmot asked Council for acceptance of a donation from the Wheel House to the City of Claremont Police Department.

Rob Walker stated the inspiration came from a block party, and noted E-bikes enhances community engagement when you see officers out of their cruisers.

RESOLUTION 2024-28

The Wheel House Bike Shop Acceptance for Donation

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS on February 28, 2024 the Wheel House Bike Shop agrees to donate to the City of Claremont – Police Department a TREK Powerfly FS 9 EQ bicycle, a Bontrager cable combination lock, and a Bontrager Rack double pannier bag for the purpose of police operations.

WHEREAS the TREK Powerfly FS 9 EQ bicycle and associated equipment has a total cost of \$6,624.97;

NOW THEREFORE BE IT RESOLVED to accept the TREK Powerfly FS 9 EQ bicycle and associated equipment has a total cost of \$6,624.97 from The Wheel House Bike Shop with no impact on the tax rate.

NOW THEREFORE BE IT RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to accept this donation.

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

A motion was made by Councilor Limoges and seconded by Assistant Mayor Matteau to accept Resolution 2024-28.

Councilor Limoges read Resolution 2024-28 into the record.

Mayor Girard Opened a public hearing.

Brian Zutter, Ward 2, stated this was the type of action the City needs, and thinks this is a brilliant idea and will hopefully encourage others in the community to evolve our City into a better place.

Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

COMMITTEE REPORTS

Assistant Mayor Matteau stated the Planning Board approved a site plan for Sullivan County HeadStart buses, Office space to a two-family, and discussions on short term rentals.

Councilor Hayden stated the EPA Steering Committee awarded a contract to Weston and Sampson, and the next meeting is on March 6th.

Councilor Batchelder noted the Conservation Commission discussed the Cat Hole eco-assessment, and continued discussion on earth day clean up.

FUTURE AGENDA ITEMS AND DIRECTIVE

Mayor Girard explained a vote is needed to set a date for a public hearing related to the Charter Amendment.

A motion was made by Councilor Koloski and seconded by Councilor Limoges to hold a public hearing for a Charter amendment at the March 27th meeting.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes
Girard – yes
Motion carried 9-0

Councilor Koloski wants the City Manager to ask the policy committee to review licensing board items.

Councilor Koloski brought up taxis, Manager Manale stated the licensed taxis can be listed on our website.

Councilor Limoges passed out information on the Healing Wall.

Councilor Koloski will not be present at the following City Council Meeting March 13th, 2024.

CONSULTATION WITH LEGAL COUNSEL
None.

ADJOURNMENT

At 8:18 p.m., a motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to adjourn.

Voice vote:
Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council